made in the January 22, 2026 Minute Order.

4. <u>Azari's Challenges to the Costs Request</u>

Azari raises various challenges to the costs requested by Garaventa totaling $14,247.69 covering the five and a half year period roughly from November 1, 2019 through the end of June 2025. The Court has reviewed the Supplemental Exhibit B attached to the Supplemental Bowles Declaration, and the Court has considered the Bowles Supplemental Declaration regarding the expenses included. (Bowles Suppl. Decl. ¶¶ 23-25.) Having considered these materials and the objections by Azari in his supplemental opposition, including that certain costs appear to be specifically related to the motion for appointment of a receiver which the Court has found is not part of the appraisal process**, the Court grants costs requested less $984.55, for net costs awarded of $13,263.14**. The Court excludes from the costs awarded the following: 3/30/2023 bridge toll/parking $9.00, 7/17/2023 color printing $23.00, 7/17/2023 filing fee $16.55, 2/4/2020 jury fees $150.00, 11/5/2019 Natalie Moore mileage $15.00, 11/7/2019 Bowles mileage $12.00, 11/5/2019 bridge toll/parking $1.00, 11/7/2019 bridge toll/parking $2.00, 11/7/2019 court reporter fees $745.00, and 11/6/2019 fax to Judge Austin $1.00 totaling **$984.55.**

<u>Conclusion and Final Award</u>

Garaventa's motion for expenses under Corporations Code section 2000(c) is **granted in part**. Garaventa's motion for payment of expenses is granted as follows: (a) attorneys' fees of **$142,243.50**, **<u>minus</u> 50% of the fees related to discovery** included in Exhibit A to the original Bowles Declaration, in an amount to be determined by a second supplemental Bowles declaration to accompany the proposed order, and (b) costs in the amount of **$13,263.14**. The motion is **denied to the extent** it seeks payment of $21,750 representing 50% of the cost of the appraisals obtained and paid for by Pine Hollow and as to the other 50% of fees incurred for discovery. The $142,243.50 is the net amount from the amount requested in the motion of $148,781.25 less the disallowed amount of $4,770.75 for fees related to the receiver motion. The $13,263.14 in costs awarded represent the $14,267.69 requested less the $984.55 disallowed as not incurred as part of the appraisal process.

Bowles shall lodge a proposed judgment awarding expenses under Corporations Code section 2000(c). With the proposed judgment, Bowles shall file a second supplemental declaration stating (1) the total fees included in Exhibit A for discovery-related services, (2) the amount that represents 50% of the total discovery-related fees, and (3) the calculation of the net award amount after deduction of the amounts disallowed by the Court for discovery from the $142,243.50 above.

11. 9:00 AM CASE NUMBER: MSC21-02074
CASE NAME: BANERJEE VS. SEECUBIC INC
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT JUDGMENT FILED 6/3/25**
FILED BY: SEECUBIC, INC.
<u>*TENTATIVE RULING:*</u>

Before the Court is Defendants Seecubic, Inc. and Shad Stastney's Motion to Set Aside Default Judgment Filed on June 3, 2025.

Procedural History

Plaintiff filed his initial complaint on October 8, 2021. Years of litigation followed including numerous discovery fights. On January 8, 2025, the Court granted Plaintiff's motion for terminating sanctions and contempt against Defendants. As part of that order, the Court struck "defendants' Answer and render[ed] a default." Notice of the Order was provided that same date.

Thereafter, on February 4, 2025, Plaintiff obtained Entry of Default against Defendants. Notice was provided to Defendants, via their counsel of record, on that same date. On June 3, 2025, a Judgment was entered against Defendants and in favor of Plaintiff. On June 26, 2025, Defendants filed substitution of counsel forms indicating that counsel of record Rodney Mayr was being replaced by current counsel Biggs Law Office.

Counsel filed a Notice of Appeal on August 5, 2025. A Notice of Abandonment of Appeal was filed on August 20, 2025. Over three months later, on December 2, 2025, Defendants filed the instant motion to set aside the Judgment.

Basis of Motion

Defendants' Notice of Motion makes clear that they "move for an order to set aside the default judgment filed on June 3, 2025." It does not indicate the statutory basis for their motion. Instead, it states that that motion is made "on the grounds that Defendant Seecubic Inc. and Defendant Shad Stastney were subjected to terminating sanctions arising out of discovery issues that were before the court over a lengthy period of time, without any knowledge of those proceedings, and concealed from them by their former counsel in this matter Rodney Mayr."

The introduction to their points and authorities indicates that Defendants seek an order setting aside the default judgment "under the authority of CCP 473." (Motion at 1:21-22.) That Code section contains a few separate methods for seeking relief, however. For example, subdivision (b) "includes a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right." (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 25.) "Although this bifurcation is not demarcated in any internal subtitling, it is plainly evidence in the textual structure of the statute." (*Ibid.*)

Reading deeper into Defendant's papers it appears clear that Defendants are moving solely based on the discretionary provisions of subdivision (b) of section 473. As such, that is the analysis on which the Court will focus on.

Standard

Code of Civil Procedure 473(b) provides, in relevant part:

> The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after

> the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under Code of Civil Procedure 473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.)

<u>Analysis</u>

<u>Time to Challenge Default</u>

As noted above, Defendants solely seek to set aside the default ***judgment*** via this motion. Even so, the timing and requirements for seeking relief from the initial default are relevant to the inquiry.

When a party seeks relief from a default, "[a]pplication for this relief … shall be made within a reasonable time, in no case exceeding six months, after the … order … was taken." (CCP §473(b).) Default was entered against the Defendants on February 4, 2025. The [Default] Judgment was entered on June 3, 2025.

Defendants are moving to set aside only the Judgment, and not the initial default. As noted above, an application for relief from default must be made within six months of entry of the default – which did not occur here. The "six-month time limit for granting statutory relief [under 473 (b)] is jurisdictional and the court may not consider a motion for relief made after that period has elapsed." (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42 citing *Stevenson v. Turner* (1979) 94 Cal.App.3d 315, 318.) As such, the Court cannot set aside the default. This also prevents the Court from setting aside the [default] Judgment in this instance.

The court in *Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267 provides a succinct overview of the analysis in such a situation:

> [Defendant's] motion was filed less than six months after entry of the default judgment, but more than six months after entry of its default. The trial court therefore could not set aside the default under Code of Civil Procedure section 473. And because it could not set aside the default, it also could not set aside the default judgment under Code of Civil Procedure section 473, because that would be 'an idle act.' (*Howard Greer Custom Originals v. Capritti* (1950) 35 Cal.2d 886, 888[].) 'If the judgment were vacated, it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not be heard in opposition thereto. …'" (*Id.* at 273.)

The California Supreme Court in *Howard*, quoted by *Pulte Homes,* includes an even more in-depth explanation of this legal tenet:

> The setting aside and vacating the judgment alone, which was all the relief sought in said motion, would have been an idle act, because the default . . . would have stood undisturbed. The default cut off defendants from making any further opposition or objection to the relief which plaintiff's complaint shows he is entitled to demand. A defendant against whom a default has been entered is out of court and is not entitled to take any further steps in the cause affecting plaintiff's right of action; he cannot thereafter, until such default is set aside in a proper proceeding, file pleadings or

move for a new trial, or demand notice of subsequent proceedings. . . . [citing cases] . . . If the judgment were vacated it would be the duty of the court immediately to render another judgment of like effect, and the defendants, still being in default, could not be heard in opposition thereto. …" (*Howard*, supra, 35 Cal.2d at 888-89 citations omitted.)

Defendants do not, and cannot, seek to have the default set aside. While the current request to set aside the Judgment may be timely, the Court is without power to set it aside as doing so would be an 'idle act.' (*Pulte Homes Corp.*, supra, 2 Cal.App.5th at 273.) Even if the Court set aside the Judgment, it would be required to thereafter enter a new judgment – without input from Defendants as they would remain in default.

Punitive Damages

At the end of their motion, Defendants argue that the punitive damages component of the [default]Judgment should be vacated pursuant to section 473. As outlined above, Defendants' Notice of Motion does not indicate that they are seeking to set aside the punitive damages portion of the Judgment. Instead, it only indicates they are seeking an order "to set aside the default judgment filed on June 3, 2025."

In its opening papers, Defendants argue that the punitive damage component of the judgment should be vacated pursuant to Code of Civil Procedure section 473, citing *Dumas v. Stocker* (1989) 213 Cal.App.3d 1262. That matter, however, pertains to an appeal after a jury award of punitive damages. It does not hold, or even discuss, the propriety of a motion to set aside the judgment under section 473.

Even if Defendant's Notice could be read to focus specifically on the award of punitive damages such relief is not available under section 473(b). Under that section, the court may "relieve a party or the party's legal representative from a judgment … taken against ***through the party's*** mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc. § 473(b) emphasis added.) Defendants were not involved in the default judgment procedure because the 'prove-up' procedure is limited to the plaintiff's presentation of evidence. (*Devlin v. Kearny Mesa Amc/Jeep/Renault* (1984) 155 Cal.App.3d 381, 386; Code Civ. Proc. § 585(b) cited therein.) After a default, the Defendants "could not participate in a judgment hearing on punitive damages" (*Devlin*, 155 Cal.App.3d at 385), despite Defendants' contention that it should have been allowed to "appear and object to Plaintiffs lack of sufficient evidence on Defendants net worth…." (Mtn. at III B.) As such, the punitive award could not have been the result of Defendant's "mistake, inadvertence, surprise, or excusable neglect."

If, as Defendants allege here, the court erred and awarded a judgment "which is utterly unwarranted" under the complaint, "the defendant's remedy is a motion for a new trial (new judgment hearing) or an appeal from the default judgment." (*Ostling v. Loring* (1994) 27 Cal.App.4th 1731, 1745; see also Weil & Brown, Civ. Pro. Before Trial (The Rutter Group 2025) ¶ 5:255, p. 5:68.) Not a motion under Code of Civil Procedure section 473(b).

In its reply, Defendants make several new arguments, including asserting for the first time that the judgment is void and thus may be set aside under Code of Civil Procedure section 473(d). "It is elementary that points raised for the first time in a reply brief are not considered by the court." (*Magic Kitchen LLC v. Good Things Internat., Ltd.* (2007) 153 Cal.App.4th 1144, 1161 quoting *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1486.) If Defendants believe the judgment is void and should be set aside under subdivision (d), it should file a motion that properly raises such arguments in the first instance.

Conclusion

Based on the above, Defendant's Motion is **DENIED** without prejudice to filing a new motion to set aside based on Code of Civil Procedure 473(d).

12. 9:00 AM CASE NUMBER: N25-0881
CASE NAME: DAVID WEE VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: TO: 1ST AMENDED PETITION FOR WRIT OF MANDATE
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Respondent City of Richmond (the "City") filed a Demurrer on December 5, 2025 the "Demurrer") to the First Amended Complaint filed by Plaintiff on November 12, 2025 (the "FAC"). The Demurrer was set for hearing on April 20, 2026. Notice was duly given.

Background

The City's Demurrer contends, among other things, that all of the causes of action alleged in the FAC fail to state facts sufficient to constitute causes of action because they are barred by the applicable statute of limitations. The Court sustained the City's prior demurrer to the initial complaint on similar grounds and granted leave to amend. See Order entered October 29, 2025 (the "Prior Ruling").

Analysis

The Demurrer is unopposed. The City's accompanying request for judicial notice is likewise unopposed and is GRANTED, subject to the limitations on judicial notice under applicable law as addressed more fully in the Court's Prior Ruling.

Disposition

The Court finds and orders as follows:

1. The Demurrer is SUSTAINED.
2. Leave to amend is DENIED.
3. Moving party to submit proposed form of order and judgment of dismissal.

13. 9:00 AM CASE NUMBER: N25-1244
CASE NAME: MALINA CURIALE VS. RUBY LIU
***HEARING ON MOTION IN RE: FOR RECONSIDERATION**
FILED BY: LIU, RUBY SHE